

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

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SHAMARR BUCKNOR, SHAMERE BUCKNOR,
VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA
JAMES, DERRICK MORGAN, JASMINE JAMES,
Individually and as Mother and Natural Guardian of LM,
an infant under the age of 14 years,

Plaintiffs,

-against-

CITY OF NEW YORK, P.O. ALEJANDRA PEREZ and
OFFICERS JOHN AND JAMES DOE, names presently
unknowable by Plaintiffs and meant to designate
additional offending officers,

Defendants.

SUMMONS

Plaintiffs designate
BRONX County as the
place of trial

The basis of venue is:
CPLR 504 (3)

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

May 7, 2019


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiffs

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Alejandra Perez, Shield 16453 of the 47th Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SHAMARR BUCKNOR, SHAMERE BUCKNOR, Index No.
VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA
JAMES, DERRICK MORGAN, JASMINE JAMES,
Individually and as Mother and Natural Guardian of LM,
an infant under the age of 14 years,

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. ALEJANDRA PEREZ and
OFFICERS JOHN AND JAMES DOE, names presently
unknowable by Plaintiffs and and meant to designate
additional offending officers,

Defendants.

-----X
Plaintiffs, by their attorney, Jonathan L. Gleit, Esq., complaining of the
Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA
DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN,
JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an
infant under the age of 14 years

1. At the time of the commencement of this action, Plaintiffs SHAMARR
BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON,
ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as

Mother and Natural Guardian of LM, an infant under the age of 14 years, were and still are residents of the County of Bronx, City and State of New York.

2. That at all times hereinafter mentioned, JASMINE JAMES, was and is the

Mother and Natural Guardian of LM, an infant under the age of 14 years,

3. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

4. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

5. That the CITY OF NEW YORK maintains a Police Department.

6. That on and about October 4, 2018, P.O. ALEJANDRA PEREZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

7. That on and about October 4, 2018, at approximately 11:30 P.M. P.O. ALEJANDRA PEREZ was working and acting within the scope of her employment as a Police Officer, and under the color of law.

8. That on and about October 4, 2018, OFFICERS JOHN AND/OR JAMES DOE, whose actual identities are presently unknowable by Plaintiffs but necessarily known by Defendants as being involved in and/or failed to intervene to prevent the hereinafter

mentioned detentions of and insults upon Plaintiffs, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

9. That on and about October 4, 2018, at approximately 11:30 P.M. OFFICERS JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police OFFICERS, and under the color of law.

10. That on or about October 4, 2018 at approximately approximately 11:30 P.M., at or near the the premises 757 East 221st Street, Bronx, New York, the Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years were improperly detained and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to detain or confine SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years.

11. That the defendants, their agents, servants and/or employees detained the Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES,

Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years without any basis in law or fact and without reasonable, probable or just cause or justification or even a reasonable suspicion of criminal activity.

12. That the defendants P.O. ALEJANDRA PEREZ and/or OFFICERS JOHN AND JAMES DOE, did, during the aforesaid unlawful detentions of Plaintiffs, forcibly and without privilege or legal justification physically removed Plaintiffs from their home, or in the case of Alexandra James, from the bedroom in which she was lawfully present.

13. That the defendants P.O. ALEJANDRA PEREZ and/or OFFICERS JOHN AND JAMES DOE, did, during the aforesaid unlawful detentions and arrests of Plaintiffs, forcibly touch Plaintiffs and physically restrain Plaintiffs, which unwanted touching did constitute assaults and battery upon Plaintiffs.

14. That the defendants, their agents, servants and/or employees unlawfully detained and confined the Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years, who were aware of their unlawful detentions and confinements thereby causing fright, shock, emotional distress and physical consequences.

15. That at the time and place aforesaid, the defendant P.O. ALEJANDRA PEREZ did detain and question and search the plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years and their premises without any reasonable basis or suspicion that they had or were about to engage in criminal activity.

16. That at the time and place aforesaid, the defendant P.O. ALEJANDRA PEREZ and OFFICERS JOHN AND JAMES DOE did forcefully enter the Plaintiffs' home and bedrooms wrongfully, without warrant nor privilege of any kind.

17. That at the time and place aforesaid, the defendants OFFICERS JOHN AND JAMES DOE did fail to intercede upon the wrongful detentions and confinements of Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years, and the insults visited upon them, their privacy, possessions, premises and things.

18. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy, practice and procedure of repeatedly wrongfully forcefully entering innocent

persons' apartments and or homes, and or sections of homes, without proper warrant, privilege or justification for nefarious, unlawful reasons, including in ill-fated and extra-constitutional zeal to confiscate weapons allegedly but in fact not possessed by certain persons, to satisfy arrest quotas and /or gain employment advantage, and /or to attempt to justify their own wrongful conduct, and without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

19. That said illegal and unlawful entries of innocent persons homes or portions of homes without reasonable or probable cause and conducting searches and detaining persons when there is no reasonable basis to conduct a search or detain such persons and without individualized reasonable suspicion of the possession of contraband, weapons or evidence, are a matter of policy, practice and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

20. Said policy, practice and procedure of wrongfully entering and searching innocent persons homes is documented, for instance, in the 2015 Report entitled

" Crossing The Threshold: An Evaluation of Civilian Complaints of Improper Entries and Searches by the NYPD from January 2010 to October 2015" found at <http://www.nyc.gov/html/ccrb/downloads/pdf/Crossing-the-Threshold-2010-2015.pdf> which details numerous other individuals who have been so wronged.

21. Said practice and procedure of falsely wrongfully entering innocent persons homes is well evidence by defendants' own compstat and other statistical tabulations, as well as those of the district attorney, the civilian complaint review board and the bureau of internal affairs.

22. Scores of innocent persons have been subjected to the same practice, procedure, and insult and as a small sample of such persons include RUTH ROSAS and JORGE ROSAS on May 18, 2011 at 2071 Vyse Avenue, Apartment 3, Bronx, New York; THOMAS HESS on March 29, 2012 at Apt. 4F, 667 East 233rd Street, Bronx New York and SHAKEEM ENANG on August 17, 2012 at 1895 University Avenue, Apt. 1A, Bronx, NY.

23. That no negligence or actions on the part of the Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as

Mother and Natural Guardian of LM, an infant under the age of 14 years contributed to the occurrences alleged herein in any manner whatsoever.

24. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., and the named defendants' supervisors, including policy makers, by policy, institutionalized procedure and act, deprived the Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

25. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

26. That as a result of the foregoing, the Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years were damaged in sums which exceed the jurisdiction of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA
DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN,
JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an
infant under the age of 14 years**

27. That Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 29 as though more fully set forth herein.

28. That on November 20, 2018, and within 90 days after the claim herein sued upon, plaintiffs caused Notices of Claim, sworn to by or on behalf of the claimants, to be presented to the defendant CITY OF NEW YORK, by presenting said Notices of Claim

to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

29. At least thirty (30) days have elapsed prior to the commencement of this action since the presentation of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

30. The CITY OF NEW YORK demanded and did conduct General Municipal Law §50h hearings of Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years on February 5, 2019 and said Plaintiffs did give testimony thereat.

31. The CITY OF NEW YORK demanded and did conduct a General Municipal Law §50h hearing of Plaintiff ALEXANDRA JAMES on March 18, 2019 and said Plaintiff did give testimony thereat.

32. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

33. That on or about October 4, 2018 at approximately approximately 11:30 P.M., at or near the the premises 757 East 221st Street, Bronx, New York, the Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years were improperly detained, confined and suffered insult without warrant, privilege, proper authority or justification, having no reason in law or in fact to detain or confine SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years.
34. That the defendants, their agents, servants and /or employees detained the Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years without any basis in law or fact and without reasonable, probable or just cause or justification or even a reasonable suspicion of criminal activity.
35. That the defendants P.O. ALEJANDRA PEREZ and/or OFFICERS JOHN AND JAMES DOE, did, during the aforesaid unlawful detentions of Plaintiffs, forcibly and

without privilege or legal justification physically removed Plaintiffs from their home, or in the case of Alexandra James, from the bedroom in which she was lawfully present.

36. That the defendants P.O. ALEJANDRA PEREZ and /or OFFICERS JOHN AND JAMES DOE, did, during the aforesaid unlawful detentions and confinements of Plaintiffs, forcibly touched Plaintiffs and physically restrained Plaintiffs, which unwanted touching did constitute assaults and battery upon Plaintiffs.

37. That the defendants, their agents, servants and /or employees unlawfully detained and confined the Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years, who were aware of their unlawful detentions and confinements thereby causing fright, shock, emotional distress and physical consequences.

38. That at the time and place aforesaid, the defendant P.O. ALEJANDRA PEREZ and OFFICERS JOHN AND JAMES DOE did detain and question and search the plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14

years without any reasonable basis or suspicion that they had or were about to engage in criminal activity.

39. That at the time and place aforesaid, the defendant P.O. ALEJANDRA PEREZ and OFFICERS JOHN AND JAMES DOE did forcefully enter the Plaintiffs' home and bedrooms wrongfully, without warrant nor privilege of any kind.

40. That at the time and place aforesaid, the defendants OFFICERS JOHN AND JAMES DOE did fail to intercede upon the wrongful detentions, confinements of and insults visited upon Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years.

41. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, P.O. ALEJANDRA PEREZ and OFFICERS JANE AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to wrongful detainment, detention and confinement, and the defendants were otherwise careless, reckless and negligent.

42. That as a result of the foregoing, the Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA

JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years were damaged in sums which exceed the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS JASMINE JAMES as Mother and Natural Guardian of LM, an infant
under the age of 14 years**

43. Plaintiff JASMINE JAMES repeats, realleges and reiterates each and every allegation set forth in the paragraphs numbered 1 through 42 contained herein, as though the same were more fully set forth at length herein.

44. That at all times hereinafter mentioned the plaintiff JASMINE JAMES was and is the mother and natural guardian of the infant plaintiff LM and as such was entitled to the services, society and companionship of the infant plaintiff.

45. That in consequence of the defendants' negligence, plaintiff's child was traumatized, and that said plaintiff was obligated to, and did, employ various aid and attendance for the child and did necessarily pay and become liable therefore, and will be obliged to expend further monies for said purposes in the future; that said plaintiff did render services in caring for the child; and that said parent was deprived the

services of the child during the incapacitation and that the child will be less able to render services to said plaintiff by reason of the lasting effects of the injuries.

46. That said plaintiff was and will be forced to observe the suffering of her child and will be emotionally disturbed by the same, and was severely emotional disturbed by the forceful and unjustified removal of her child from her custody and control.

47. That as a result of the aforementioned occurrence said plaintiff JASMINE JAMES sustained damage in a sum that exceeds the jurisdictional limits of all lower Courts.

48. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA
DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN,
JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an
infant under the age of 14 years**

49. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 48 as though more fully set forth herein.

50. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

51. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful entry of private premises and detention of individuals.

52. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiffs SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years were denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the Plaintiffs were made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiffs and for the purchase of drugs and medicines, and that Plaintiffs were and in the future will be prevented from attending to Plaintiffs' usual vocation and avocations; all to the Plaintiffs' damage in sums which exceed the jurisdiction of all lower Courts.

53. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demand judgment against the Defendants on the First Second, Third and Fourth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.

May 7, 2019



By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiffs

SHAMARR BUCKNOR, SHAMERE BUCKNOR, VERONICA DOUGLAS, KAREN FEARON, ALEXANDRA JAMES, DERRICK MORGAN, JASMINE JAMES, Individually and as Mother and Natural Guardian of LM, an infant under the age of 14 years

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Alejandra Perez, Shield 16453 of the 47th Precinct
4111 Laconia Ave., Bronx NY 10466

PLAINTIFF'S VERIFICATION

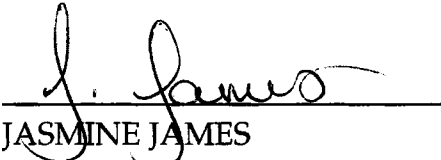
JASMINE JAMES affirms the following to be true under the penalties of perjury:

I am the Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


JASMINE JAMES

Sworn before me this
7th day of March, 2019


Notary Public

JONATHAN LOUIS GLEIT
Notary Public, State of NY
No. 31-4979332
Qualified in Westchester County
Commission Expires March 25, 2023